

STATE OF NEW YORK

1867--A

Cal. No. 17

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. ROSENTHAL, EPSTEIN, BICHOTTE HERMELYN, BURDICK, SEAWRIGHT, COLTON, LEE -- read once and referred to the Committee on Housing -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the administrative code of the city of New York, in relation to requirements for a building owner to refuse to renew a lease when the building is to be demolished

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subparagraph (a) of paragraph 9 of subdivision c of section 26-511 of the administrative code of the city of New York is amended to read as follows:

(a) where ~~[he or she]~~ such owner establishes to the satisfaction of the division of housing and community renewal that such owner: (i) intends in good faith to demolish the building and construct a new building; (ii) has obtained from the department of buildings a permit [therefor from the department of buildings] for such demolition project and has submitted plans for the construction of a new building to the department of buildings for approval; and (iii) has the financial ability to complete such demolition and construction; or

§ 2. This act shall take effect immediately; provided that the amendments to subparagraph (a) of paragraph 9 of subdivision c of section 26-511 of the administrative code of the city of New York made by section one of this act shall expire on the same date as such section expires and shall not affect the expiration of such section as provided in section 26-520 of such code.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

LBD04702-02-5